

23PSCV02379 23PSCV02379

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Case Number: 23PSCV02379 Hearing Date: August 26, 2026 Dept: G

Defendant

Thomas Ramirez's Motion to Tax/Strike Costs

Respondent:

Plaintiff Edward Contreras

Plaintiff

Edward Contreras's Motion to Strike and/or Tax Costs

Respondent:

Defendant Prestige Transportation Inc.

Plaintiff

Edward Contreras's Motion for Attorney's Fees and Expenses

Respondent:

Defendant Thomas Ramirez

TENTATIVE

RULING

Defendant

Thomas Ramirez's Motion to Tax/Strike Costs is GRANTED IN PART and DENIED IN PART. Plaintiff Edward Contreras is AWARDED a total of \$4,853.07 in costs.

Plaintiff

Edward Contreras's Motion to Strike and/or Tax Costs is GRANTED IN PART and DENIED IN PART. Defendant Prestige Transportation Inc. is

AWARDED a total of \$2,710.09 in costs.

Plaintiff

Edward Contreras's Motion for Attorney's Fees and Expenses is DENIED.

BACKGROUND

This

is a personal injury action arising out of a motor vehicle collision. On August 18, 2021, defendant Thomas Ramirez (Ramirez) allegedly collided a semi-truck owned by defendant Prestige Transportation Inc. (PTI) into the car of plaintiff Edward Contreras (Contreras), injuring him.

On

August 4, 2023, Contreras filed the Complaint, alleging causes of action for (1) motor vehicle and (2) general negligence.

On

May 18, 2026, the court issued the Judgment, finding Ramirez fully liable for Contreras's damages. On May 29, 2026, Contreras filed a memorandum of costs. On June 3, 2026, PTI filed a memorandum of costs.

On

June 4, 2026, Ramirez filed a motion to tax costs. On July 22, 2026, Contreras filed the opposition, and on July 28, 2026, Ramirez filed the reply.

On

June 16, 2026, Contreras filed a motion to tax costs. On July 29, 2026, PTI filed the opposition, and on August 4, 2026, Contreras filed the reply.

On

July 8, 2026, Contreras filed a motion for sanctions (internally labeled as a motion for attorney's fees). On August 12, 2026, Ramirez filed the opposition, and on August 19, 2026, Contreras filed the reply.

The

motions are set for hearing on August 26, 2026.

MOTION

TO TAX COSTS

Ramirez

moves to tax costs in the minimum amount of \$33,664.61 from the \$35,586.04 requested in Contreras's memorandum of costs.

Contreras moves to tax all costs from the \$5,857.09 requested in PTI's memorandum of costs. For the following reasons, Ramirez's motion is GRANTED IN PART and DENIED IN PART, and Contreras's motion is GRANTED IN PART and DENIED IN PART.

Legal

Standard

A

party may contest costs through a motion to strike or tax costs. (Cal. Rules of Court, rule 3.1700, subd. (b).) "If the items appearing in a cost

bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ladas v.

Cal. State Automobile Assn. (1993) 19 Cal.App.4th 761, 774.) In addition to items allowable as costs pursuant to Subdivision (a) of Code of Civil Procedure section 1033.5, the court has discretion to award other costs if not prohibited by Subdivision (b) of that section and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Ladas, supra, 19 Cal.App.4th at 774, quoting Code Civ. Proc., § 1033.5, subd. (c)(2).)

Discussion

Ramirez's

Motion to Tax Costs

Ramirez

challenges the following categories of costs: (1) filing and motion fees, (2) service fees, (3) witness fees, (4) deposition costs, (5) models and exhibits, and (6) other costs. For each of these categories, following the burden-shifting framework outlined in Ladas, the court first

examines whether the opposing party demonstrates that the items on the cost bill are proper charges, then it looks at whether the moving party shows they were not reasonable or necessary, and finally determines whether the opposing party establishes the costs are justified.

Filing
and Motion Fees

Ramirez
argues that Contreras should not recover some of the requested \$1,336.28 in filing and motion fees. (See Ramirez Mot. Tax Costs, pp. 5, 8.)
The court disagrees.

Filing and motion fees are recoverable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).)

Ramirez concedes that Contreras may recover filing
and motion fees from him but contends that Contreras should not recover filing
and motion fees from PTI. (See Ramirez
Mot. Tax Costs, p. 8.) Ramirez then
notes that Contreras's memorandum of costs does not apportion which filing and
motion fees Contreras incurred in prosecuting this action against Ramirez as
opposed to those incurred in prosecuting the action against PTI. (See Ramirez Mot. Tax Costs, p.
8.) However, the court finds that
throughout this litigation, with the exception of service of process, Contreras
by and large filed documents as to both Ramirez and PTI. (See Contreras Opp. Tax Costs, p. 6,
explaining, "The costs challenged by . . . Ramirez were incurred in litigating
common issues arising from the same motor vehicle collision and were reasonably
necessary to prosecute [Contreras]'s claims against . . . Ramirez.") For example, Contreras filed a single Summons
that listed both Ramirez and PTI. (See
8/7/2023 Summons, p. 1.) Even if PTI
should not bear the filing fee for that document, Contreras may still recover
the filing fee from Ramirez.

Therefore,
the court declines to strike any amount from the filing and motion fees
requested by Contreras.

Service
Fees

Ramirez

argues that Contreras should not recover \$513.15 of the requested \$822.30 in service fees. (See Ramirez Mot. Tax Costs, pp. 5, 8.) The court agrees in part and disagrees in part.

Fees

for service of documents are recoverable costs.
(Code Civ. Proc., § 1033.5, subd. (a)(14).)

Ramirez

first contends that Contreras should not recover fees related to serving PTI. (See Ramirez Mot. Tax Costs, p. 8.) As noted above, Contreras served Ramirez and PTI separately, and while Contreras may recover costs associated with prosecuting the action against Ramirez, he cannot recover those associated with prosecuting the action against PTI. Thus, Contreras cannot recover \$112.00 in costs for serving PTI.

Ramirez

next contends that Contreras should not recover fees related to serving a trial subpoena for a witness that ultimately did not testify. (See Ramirez Mot. Tax Costs, p. 8.) Even though the witness did not testify at trial, Contreras served the subpoena with a reasonable expectation that the witness would testify. Thus, the court declines to strike the cost of serving the subpoena.

Ramirez

finally contends that Contreras should not recover the full \$316.50 for substituted service of Ramirez when substituted service of PTI only cost \$112.00. (See Ramirez Mot. Tax Costs, p. 8.) However, as Contreras highlights, “service fees vary depending on the number of attempts required, the method of service, the location of the individual being served, and whether personal or substituted service is ultimately accomplished,” and “the \$316.50 service charge resulted from six unsuccessful attempts to personally serve [Ramirez] before service was completed, whereas [PTI] was successfully served by substituted service on the first attempt.” (Contreras Opp. Tax Costs, p. 8, citing Van Le Decl., ¶ 7.) Thus, the court declines to strike the cost of substituted service of Ramirez.

Therefore, the court strikes \$112.00 from the

service fees.

Witness

Fees

Ramirez

argues that Contreras should not recover any of the \$26,156.62 requested in witness fees. (See Ramirez Mot.

Tax Costs, pp. 5, 8–9.) The court agrees.

Recoverable

costs include “[o]rdinary witness fees” and “[f]ees of expert witnesses ordered by the court.” (Code Civ. Proc., § 1033.5, subd. (a)(7)–(a)(8).) Fees of expert witnesses not ordered by the court are not recoverable, unless expressly authorized by another law. (Code Civ. Proc., § 1033.5, subd. (b)(1).) “If an offer made by a plaintiff is not accepted and the defendant fails to obtain a more favorable judgment or award in any action . . . , [then] the court . . . may require the defendant to pay a reasonable sum to cover post-offer costs of the services of expert witnesses. . . .” (Code Civ. Proc., § 998, subd. (d).)

Ramirez

contends that Contreras should not recover any of the witness fees because the court did not order the expert witnesses.

(See Ramirez Mot. Tax Costs, pp. 8–9.) Contreras contends that he should recover the witness fees of his expert witnesses because he made an offer to compromise under Code of Civil Procedure section 998. (See Contreras Opp. Tax Costs., p. 9.)

“To be effective, an offer to multiple parties under [S]ection 998 must be explicitly apportioned among the parties to whom the offer is made so that each offeree may accept or reject the offer individually.” (Palmer v. Schindler Elevator Corp. (2003) 108 Cal.App.4th 154, 157.) Though Contreras made an offer, it did not provide Ramirez and PTI with the opportunity to accept or reject the offer individually. The court finds that this omission made Contreras’ 998 Offer invalid. (See Contreras Memo. of Costs, Exh. A.)

Since

the expert witness fees are not allowed pursuant to Section 998, they are disallowed by Section 1033.5.

Therefore,

the court strikes \$26,156.62 from the witness fees.

Deposition

Costs

Ramirez

argues that Contreras should not recover any of the \$842.92 requested in deposition costs. (See Ramirez Mot. Tax Costs, pp. 5, 9.) The court agrees.

A

prevailing plaintiff may recover for the costs of “[t]aking, video recording, and transcribing necessary depositions.”

(Code Civ. Proc., § 1033.5, subd. (a)(3)(A).)

Ramirez

contends that Contreras should not recover for the costs of deposition

transcripts because the court did not order them. (See Ramirez Mot. Tax Costs, p. 9.) However, Section 1033.5 does not only permit

a prevailing plaintiff to recover for deposition transcripts when they are court ordered. (See Code

Civ. Proc., § 1033.5, subd. (a)(3)(A).)

Therefore,

the court declines to strike any amount from the deposition costs.

Models

and Exhibits

Ramirez

argues that Contreras should not recover any of the \$663.67 requested in models and exhibits. (See Ramirez Mot.

Tax Costs, pp. 5, 9–10.) The court

agrees in part and disagrees in part.

“Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting” are allowable costs “if they were reasonably helpful to aid the trier of fact.” (Code Civ. Proc., § 1033.5, subd. (a)(13).)

Ramirez contends that Contreras should not recover for the costs of models and exhibits because Contreras did not present models and enlargements of exhibits to the jury. (See Ramirez Mot. Tax Costs, p. 9.) Contreras, on the other hand, contends that he should recover these costs because he made trial binders for the use of witnesses, counsel, and the court. (See Contreras Opp. Tax Costs, p. 10.) Even if the photocopies of exhibits were useful to witnesses, counsel, and the court, they are not recoverable under Section 1033.5, subdivision (a)(13), unless they were useful to the jury. The court finds the exhibits were useful to the jury. Therefore, the photocopy expenses are recoverable.

Contreras also contends that the claimed cost includes photocopying jury instructions for the jury. (See Contreras Opp. Tax Costs, pp. 10–11.) However, charges for making copies are not recoverable, except for copies of exhibits. (See Code Civ. Proc., § 1033.5, subd. (b)(3).)

Therefore, the strikes \$112.00 from the models and exhibits for copies associated with the jury instructions.

Other
Costs

Ramirez argues that Contreras should not recover any of the \$5,488.25 in “other” costs. (Ramirez Mot. Tax Costs, pp. 5, 10–11.) The court agrees in part and disagrees in part.

Costs

not specified by statute are allowable in the court's discretion, but they must be specifically pleaded. (Code Civ.

Proc., § 1033.5, subd. (c)(4); *Jones v. Union Bank of Cal.* (2005) 127

Cal.App.4th 542, 551 ("Because costs other than those allowed under section 1033.5 are not based on statute, they must be specifically pleaded and proved at trial rather than included in a memorandum of costs.")

Here,

Ramirez contends that Contreras should not recover for the costs of counsel's meals, travel, and lodging during trial.

(See Ramirez Mot. Tax Costs, pp. 10–11.) "[M]eals and travel unrelated to attending depositions" are unrecoverable costs. (See

Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 73.)

However,

Contreras also mentions that the other costs claimed include the cost of obtaining certain evidence, exhibit tabs and related materials used to create trial binders, and a deposition transcript. (See

Contreras Opp. Tax Costs, p. 11.) Contreras

cannot recover for the cost of obtaining the cited evidence because it is not specifically pleaded; the court cannot discern which invoices are related to the claimed cost. (See Contreras Memo. of

Costs, Exh. H.) Likewise,

Contreras cannot recover for the exhibit tabs and related materials; the invoice for the exhibit tabs is redacted, and office supplies are more akin to overhead than costs incurred for this litigation.

(See Contreras Memo. of Costs, Exh. H.)

Contreras may nevertheless recover for the deposition transcript, even if it is mischaracterized, because it is a statutorily listed category of cost. (See Code Civ. Proc., § 1033.5, subd. (a)(3)(A).)

Therefore, the court strikes \$4,350.35 in other costs.

Accordingly,

Ramirez's motion to strike costs is GRANTED IN PART and DENIED IN PART. Contreras is AWARDED costs in the reduced amount of \$4,853.07.

Contreras's

Motion to Tax Costs

Contreras

challenges the following categories of costs: (1) filing and motion fees, (2) jury fees, and (3) deposition costs. As done above, for each of these categories, following the burden-shifting framework outlined in *Ladas*, the court first examines whether the opposing party demonstrates that the items on the cost bill are proper charges, then it looks at whether the moving party shows they were not reasonable or necessary, and finally determines whether the opposing party establishes the costs are justified.

Filing

and Motion Fees

Contreras

argues that PTI should not recover any of the \$749.06 in filing and motion fees. (See *Contreras Mot. Tax Costs*, pp. 4, 7–10.) The court disagrees.

Filing

and motion fees are recoverable costs.

(Code Civ. Proc., § 1033.5, subd. (a)(1).)

Contreras

concedes that PTI may recover filing and motion fees from him but contends that PTI should not recover filing and motion fees unless it incurred those costs as part of its “separate defense.” (*Contreras Mot. Tax Costs*, p. 7.) Contreras then notes that PTI’s memorandum of costs does not apportion which filing and motion fees PTI incurred in defending this action on its own behalf as opposed to those incurred in defending the action against Ramirez. (See *Contreras Mot. Tax Costs*, p. 8.)

However,

the court finds that throughout this litigation, PTI by and large filed documents as to both itself and Ramirez.

(See *PTI Opp. Tax Costs*, p. 2, explaining that PTI “provided a

contractual defense to Ramirez.”) Even though PTI incurred costs that benefitted Ramirez, it reasonably incurred filing and motion fees as part of their defense, as Contreras’s claims against PTI were based on vicarious liability for Ramirez’s actions.

Therefore,
the court does not strike any amount from the filing and motion fees.

Jury
Fees

Contreras
argues that PTI should not recover any of the \$1,961.03 in jury fees. (See Contreras Mot. Tax Costs, pp. 4, 11.) The court disagrees.

Jury
fees are recoverable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) Costs in investigation of jurors or in preparation for voir dire are not recoverable, unless authorized by another law. (Code Civ. Proc., § 1033.5, subd. (b)(4).)

Contreras
contends that PTI should not recover for jury fees because it would be unjust. (See Contreras Mot. Tax Costs, p. 11.) PTI requested the jury trial, incurred the cost of jury fees, and is entitled to jury fees; it would be unjust to not award PTI jury fees.

Therefore, the court does not strike any amount from the jury fees.

Deposition
Costs

Contreras
argues that PTI should not recover any of the \$3,147.00 requested in deposition costs. (See Contreras Mot. Tax Costs, pp. 4, 11–14.) The court agrees.

A

prevailing party may recover for the costs of “[t]aking, video recording, and transcribing necessary depositions.”

(Code Civ. Proc., § 1033.5, subd. (a)(3)(A).)

Contreras

contends that PTI should not recover for the costs of deposition transcripts

because the cost may not have been reasonably incurred. (See Contreras Mot. Tax Costs, p. 12.) Specially, the court finds that PTI failed to

demonstrated how the requested cost were necessary to its defenses as opposed

to the defense of Ramirez against whom plaintiff prevailed. Since PTI failed to demonstrate the requested

deposition costs were proper charges, reasonable in amount, and necessary to

its defense, the court declines to award these costs to PTI.

Therefore,

the court strikes this \$3,147.00 from PTI's claimed deposition costs.

Accordingly,

Contreras's motion to strike costs is GRANTED IN PART AND DENIED IN PART. PTI is AWARDED costs in the total amount of \$2,710.09.

MOTION

FOR COST-OF-PROOF SANCTIONS

Contreras

moves for cost-of-proof sanctions consisting of \$238,932.62 in attorney's fees. For the following reasons, the motion is DENIED.

Legal

Standard

“If

a party fails to admit the genuineness of any document or the truth of any

matter when requested to do so . . . , and if the party requesting that

admission thereafter proves the genuineness of that document or the truth of

that matter, the party requesting the admission may move the court for . . .

the reasonable expenses incurred in making that proof, including reasonable

attorney's fees.” (Code Civ. Proc., §

2033.420, subd. (a).) The court will

grant the request, unless (1) an objection to the request was sustained or a

response to it was waived under Section 2033.290, (2) the admission sought was of no substantial importance, (3) the party failing to make the admission had reasonable ground to believe that that party would prevail on the matter, or (4) there was other good reason for the failure to admit. (See Code Civ. Proc., § 2033.420, subd. (b).)

Discussion

As

a preliminary matter, the court notes that Contreras failed to include a proof of service with the motion. “Before filing any document, a party must serve, by any method permitted by the Code of Civil Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule.

The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . . The proof must name each party represented by each attorney served.” (Cal. Rules of Court, rule 8.817(a)(1)–(a)(2).) Here, Contreras did not attach a proof of service to the motion or file a separate proof of service with the motion.

However,

Ramirez filed an opposition contesting the motion on the merits, and the opposition does not raise defective notice.

(See generally Ramirez Opp. Sanctions; see also Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”)

Thus, in the interest of judicial efficiency, the court considers the petition on the merits. (See Cal.

Rules of Court, rule 3.1300(d); see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262.)

Regarding

the merits of the motion, following the framework outlined in Section 2033.420, the court first examines whether the nonmoving party failed to admit the genuineness of a document or the truth of any matter and that the moving party then proved the genuineness of the document or the truth of the matter. Thereafter, the court must examine whether there was a good reason for the failure to admit. Only after the moving party establishes

entitlement to attorney's fees under Section 2033.420 must the court consider the amount of attorney's fees to award.

Failure

to Admit and Subsequent Proof

Contreras

argues that Ramirez failed to admit that he was negligent in causing the motor vehicle collision and that Contreras later proved that Ramirez was negligent in causing the collision. The court agrees.

Contreras

propounded Requests for Admission, Set One on Ramirez on February 20, 2024, requesting that Ramirez admit his negligence contributed to the motor vehicle collision, causing Contreras's injuries.

(See Van Le Decl., Exh. A.)

According to Contreras's evidence, Ramirez served verified responses on

Contreras on April 9, 2024, denying the subject requests for admission. (See Van Le Decl., Exh. B.) The case proceeded to trial, and the jury

found that Ramirez's negligence contributed to the motor vehicle collision, causing Contreras's injuries. (See 4/16/2026 Min. Order, pp. 2–5.)

Therefore, the court must grant the request for sanctions unless there was a good reason for the failure to admit.

Good

Reason for the Failure to Admit

Contreras

argues that there was no good reason for the failure to admit because Ramirez did not object to the requests for admission, responses were not waived, and Ramirez did not have reasonable grounds to believe he would prevail. The court disagrees.

As

stated above, Contreras presents evidence that Ramirez served verified responses to Requests for Admission, Set One.

(See Van Le Decl., Exh. A.)

Ramirez presents evidence of his responses to Form Interrogatories, Set

One, which include objections to the subject requests for admission. (See Ramirez Opp. Atty's Fees, Exh. C, pp. 1, 16–18.) In *Wimberly v. Derby Cycle Corp.*,

the Court of Appeal did not allow a propounding party to recover cost-of-proof sanctions when it failed to compel a further response after the responding party objected to the request for admission.

(See *Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th

618, 636.) However, Ramirez did not

serve objection-only responses to Requests for Admission, Set One; Ramirez served verified responses to that discovery request and objected to the requests in a separate discovery response.

(See Van Le Decl., Exh. A; see also Ramirez Opp. Atty's Fees, Exh. C, pp. 1, 16–18.)

In

contrast to the propounding party in *Wimberly* who waived his right to cost-of-proof sanctions by failing to file a motion to compel, Contreras did not need to compel a further response because Ramirez provided responses. Moreover, the Section 2033.420, subdivision (b)(1) does not only require the responding party to make an objection; it requires the court to sustain the objection.

The court did not sustain any objection to Requests for Admission, Set One, and there is no indication that responses were waived.

However,

the trial record indicates that Ramirez had reasonable grounds to believe he would prevail. As Ramirez highlights,

the jury was divided on comparative fault issues. (See Ramirez Opp. Atty's Fees, p. 4.) On the issue of Contreras's own negligence,

only nine out of twelve jurors found that he was not. (See

4/16/2026 Min. Order, p. 7.) On the issue of a nonparty's negligence, only

eleven out of twelve jurors found that the third-party was not negligent. (See 4/16/2026 Min. Order, p.

7.) Since some reasonable jurors

concluded that Contreras and a third-party contributed to the motor vehicle collision and Contreras's injuries, Ramirez had a reasonable ground to believe that other jurors would find that his own negligence was the sole cause of the collision and injuries. Thus, Ramirez

had reasonable grounds to believe he would prevail on the issue of his own negligence in causing the collision and injuries.

Therefore,

there was a good reason for the failure to admit.

Accordingly,

the motion for cost-of-proof sanctions is DENIED.

CONCLUSION

For

these reasons, defendant Thomas Ramirez's motion to tax/strike costs is GRANTED

IN PART. Plaintiff Edward Contreras

is AWARDED a total of \$4,853.07 costs.

Plaintiff

Edward Contreras's motion to strike and/or tax costs is DENIED. Defendant Prestige Transportation Inc. is AWARDED a total of \$2,710.09 in costs.

Plaintiff

Edward Contreras's motion for attorney's fees and expenses is DENIED.